

Court No. - 33

Case :- CONTEMPT APPLICATION (CIVIL) No. - 280 of 2017

Applicant :- Jaydev Singh

Opposite Party :- Sri Pankaj Kumar, Exe. Engineer, E.D. Division Debai & Anr.

Counsel for Applicant :- Vijay Shantam

Hon'ble Suneet Kumar,J.

Heard the learned counsel for the applicant.

It is alleged that the order dated 29.1.2016 passed in Writ-C-No. 2428 of 2016 and order dated 3.9.2015 passed in Writ-C No. 49846 of 2015 have been violated.

From a perusal of the record, a prima facie case for contempt is made out.

Issue notice to opposite party No. 1 returnable within a month.

The counter affidavit may be filed within the aforesaid period or else charges may be framed after summoning the noticee.

However, one more opportunity is granted to the opposite party No. 1 to comply with the order within a month. In case by the next date fixed the directions of the Writ Court are not complied with and an affidavit to that effect is not filed, the opposite party No. 1 shall remain present before this Court on the date fixed.

The office may send a copy of this order along with the notice.

List on the date mentioned in the notice.

Order Date :- 20.1.2017

Mukesh Kr.

Court No. - 33

Case :- CONTEMPT APPLICATION (CIVIL) No. - 280 of 2017

Applicant :- Jaydev Singh

Opposite Party :- Sri Pankaj Kumar, Exe. Engineer, E.D. Division Debai & Anr.

Counsel for Applicant :- Vijay Shantam

Counsel for Opposite Party :- S.C.

Hon'ble Suneet Kumar,J.

Sri Chandan Agarwal, learned counsel has filed affidavit of compliance on behalf of opposite party no. 1 and 2 which is taken on record.

Learned counsel for the applicant prays for and is granted four weeks' time to file objection/counter affidavit to the compliance affidavit.

List on 29 March 2017 showing the name of Sri Chandan Agarwal as counsel for the opposite parties.

Order Date :- 17.2.2017

S.Prakash

Court No. - 33

Case :- CONTEMPT APPLICATION (CIVIL) No. - 280 of 2017

Applicant :- Jaydev Singh

Opposite Party :- Sri Pankaj Kumar, Exe. Engineer, E.D. Division Debai & Anr.

Counsel for Applicant :- Vijay Shantam

Counsel for Opposite Party :- S.C., Chandan Agarwal

Hon'ble Manoj Misra, J.

The learned counsel for the applicant is present. Sri Chandan Agarwal, who appears on behalf of the opposite party, is not present.

List in the next cause list.

Order Date :- 17.8.2017

AKShukla/-

Court No. - 33

Case :- CONTEMPT APPLICATION (CIVIL) No. - 280 of 2017

Applicant :- Jaydev Singh

Opposite Party :- Sri Pankaj Kumar, Exe. Engineer, E.D. Division Debai & Anr.

Counsel for Applicant :- Vijay Shantam

Counsel for Opposite Party :- S.C., Chandan Agarwal

Hon'ble Manoj Misra, J.

The writ Court vide its order dated 29th January, 2016 had directed the concerned authority to decide the representation of the applicant by a reasoned and speaking order.

It appears that the grievance of the applicant was that he has been throughout making payment of electricity bills but the said payment was not accounted for and arbitrarily a bill of about Rs.1 lac was raised in connection with which an application was filed by the applicant for correction by invoking clause 6.5 (b)(ii) of the U.P. Electricity Supply Code, 2005. It is the case of the applicant that instead of addressing the grievance of the applicant and dealing with the issue as to whether the applicant had already made payment in respect of the demand raised for electricity supply, the opposite party by order dated 8th February, 2017 has only directed adjustment of Rs.3,994/-.

Prima facie, this Court is of the view that the opposite party has not addressed the issue which he was supposed to address pursuant to the direction given by the writ Court.

In view of the above, opposite party, namely, Pankaj Kumar, Executive Engineer, Electricity Distribution Khand, Dibai, district Bulandshahar shall be personally present before the Court on 22nd September, 2017 to explain as to why charges may not be framed against him. It is made clear that Sri Chandan Agrawal, Advocate has already put in appearance on behalf of the aforesaid opposite party and he will accordingly inform the opposite party no.1 about this order.

Order Date :- 4.9.2017.

Rks.

Court No. - 2

Case :- CONTEMPT APPLICATION (CIVIL) No. - 280 of 2017

Applicant :- Jaydev Singh

Opposite Party :- Sri Pankaj Kumar, Exe. Engineer, E.D. Division Debai & Anr.

Counsel for Applicant :- Vijay Shantam

Counsel for Opposite Party :- S.C., Chandan Agarwal

Hon'ble Surya Prakash Kesarwani, J.

A reply/rejoinder affidavit has been filed today by the opposite party, which is taken on record.

The opposite party namely, Sri Pankaj Kumar, Executive Engineer is personally present in Court.

List on 6.10.2017 before the appropriate Court.

The personal appearance of the opposite party is exempted till further orders.

Order Date :- 22.9.2017

Ak/

Court No. - 16

Case :- CONTEMPT APPLICATION (CIVIL) No. - 280 of 2017

Applicant :- Jaydev Singh

Opposite Party :- Sri Pankaj Kumar, Exe. Engineer, E.D.
Divsion Debai & Anr.

Counsel for Applicant :- Vijay Shantam

Counsel for Opposite Party :- S.C.,Chandan Agarwal

Hon'ble Ashwani Kumar Mishra,J.

As prayed on behalf of the respondents, list on 13.10.2017.

Order Date :- 6.10.2017

Ashok Kr.

Court No. - 16

Case :- CONTEMPT APPLICATION (CIVIL) No. - 280 of 2017

Applicant :- Jaydev Singh

Opposite Party :- Sri Pankaj Kumar, Exe. Engineer, E.D.
Division Debai & Anr.

Counsel for Applicant :- Vijay Shantam

Counsel for Opposite Party :- S.C., Chandan Agarwal

Hon'ble Ashwani Kumar Mishra,J.

Put up in the additional cause list on 24.10.2017.

Learned counsel for the applicant shall inform in writing of the order passed today to Sri Chandan Agarwal, learned counsel for the opposite party.

Order Date :- 13.10.2017

Ashok Kr.

Court No. - 16

Case :- CONTEMPT APPLICATION (CIVIL) No. - 280 of 2017

Applicant :- Jaydev Singh

Opposite Party :- Sri Pankaj Kumar, Exe. Engineer, E.D. Divsion Debai & Anr.

Counsel for Applicant :- Vijay Shantam

Counsel for Opposite Party :- S.C.,Chandan Agarwal

Hon'ble Ashwani Kumar Mishra,J.

This petition alleges disobedience of the two orders passed by the writ court in Writ Petition Nos.49846 of 2015 and 2428 of 2016. The first order dated 3.9.2015 in Writ Petition No.49846 of 2015 reads as under:-

"If the petitioner is not satisfied with the bill raised in respect of the consumption of electricity by the respondent-Corporation, he has remedy available under Clause 5.6 of the Electricity Supply Code 2005. The writ petition is dismissed with liberty, as aforesaid."

By the aforesaid order writ petition has been dismissed by leaving it open for the applicant to avail remedy in terms of clause 5.6 of the Electricity Supply Code, 2005 (the correct clause 6.5). The second order dated 29.1.2016 passed in Writ Petition No.2428 of 2016 reads as under:-

"The petitioner contends that he has filed a representation for correction of the bills pursuant to the order of the Court dated 3rd September, 2015, which is pending consideration.

The writ petition is disposed of directing the authority concerned to decide the representation of the petitioner by a reasoned and speaking order within four weeks from the date of production of a certified copy of this order. The writ petition is disposed of."

Alongwith affidavit of compliance the opposite parties have brought on record an order dated 8.2.2017 wherein the representation of the applicant has been dealt with and it is recorded that after adjusting the amount already deposited a sum of Rs.97,912/- remains payable. According to the applicant, this order fails to comply with directions issued by writ court. The first writ petition filed by the applicant has been dismissed on the ground of alternative remedy, whereas the second writ petition was disposed of directing disposal of representation. Representation of applicant has been considered and rejected on 8.2.2017.

In the facts and circumstances, as the order of the writ court has been complied with, this Court is not inclined to entertain this

petition. In case applicant feels aggrieved by the order of the authorities dated 8.2.2017, remedy of the applicant lies elsewhere. The contempt petition is accordingly consigned to records.

Order Date :- 24.10.2017

Ashok Kr.